

Warsaw, October 19, 2022

Decision

DS.523.4826.2020

Based on Article 104 § 1 of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws of 2022, item 2000, consolidated text) in conjunction with Article 7(1) and (2) of the Act of May 10, 2018, on the Protection of Personal Data (Journal of Laws of 2019, item 1781, consolidated text) and Article 12(3) and (5), Article 15(3) and (4), Article 58(2)(c) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (Official Journal of the EU L 119 of May 4, 2016, p. 1, Official Journal of the EU L 127 of May 23, 2018, p. 2, and Official Journal of the EU L 74 of March 4, 2021, p. 35), hereinafter referred to as Regulation 2016/679, after conducting administrative proceedings regarding the complaint of Ms. M. G., residing in W., concerning irregularities in the processing of her personal data by F. P. S.A. based in W. (previously: F. D. P. S.A.), consisting of the failure to fulfill the request for access to copies of her personal data, i.e., the request submitted based on Article 15(3) of the aforementioned Regulation, by refusing to provide the content of the recorded telephone conversation, the President of the Personal Data Protection Office orders F. P. S.A. based in W. to fulfill the informational obligation towards Ms. M. G., residing in W., specified in Article 15(3) of Regulation 2016/679 by providing a copy of her personal data recorded in the telephone conversations with the consultant, including the voice of Ms. M. G.

Justification

The President of the Personal Data Protection Office, hereinafter also referred to as the President of UODO, received a complaint from Ms. M. G., residing in W., hereinafter referred to as the Complainant, regarding irregularities in the processing of her personal data by F. P. S.A. based in W. (previously: F. D. P. S.A.), hereinafter referred to as the Company, consisting of the failure to fulfill the Complainant's request for access to copies of her personal data, i.e., the request submitted based on Article 15(3) of Regulation 2016/679.

During the conducted explanatory proceedings in this matter, the President of UODO established the following:

The Complainant indicated that she approached the Company with a request for access to her personal data in the form of recordings of telephone conversations with the Company's consultants. Since her request was denied, she turned to the President of UODO for intervention (evidence: letter from the Complainant dated [...] September 2020).

The Company stated that it obtained the Complainant's data directly from her in connection with the conclusion of an agreement on [...] March 2018 regarding cooperation in the handling and settlement of transactions paid by payment cards (evidence: explanations from the Company dated [...] March 2021).

The Complainant, by letter dated [...] March 2020, requested the Company to provide a recording of her conversation with the Company's consultant on [...] September 2019. The Company responded to the aforementioned request on [...] April 2020, stating, quote: "we do not find the telephone conversation from the phone number [...], conducted with the Customer Service Center of F. D. P. on [...] September 2019, which you refer to in your submission dated [...] March 2020. Therefore, we ask for information on which phone number and to which phone number you made the call on [...] September 2019 to obtain information on how to terminate the contract." In response to this, the Complainant, by letter dated [...] May 2020, again requested access to the aforementioned recording (not providing the additional information requested by the Company). The Company responded to the aforementioned correspondence on [...] July 2020, again informing that it does not find the aforementioned conversation and again requesting the Complainant to provide additional information. The Complainant, by letter dated [...] July 2020, approached the Company with the following request: "please provide recordings of all conversations I conducted from the phone number [...] to all your helplines from the period from 2019-07-[...] to 2019-12-[...]." The Company responded to the

aforementioned correspondence on [...] August 2020, stating that, quote: "all available conversations with our consultants have been listened to. The conversation from [...] September 2019 concerned the payment terms of invoices and the collection proceedings against your company. The next conversation from [...] October 2019 concerned the confirmation of the termination of the Agreement from [...] March 2018. The next two conversations, both from [...] January 2020, concerned the collection proceedings conducted by the company E. K. P. Sp. z o.o. You were informed that a charge note was issued for the early termination of the Agreement (...). At the same time, we inform you that we do not provide recorded conversations due to data security." In response to the aforementioned letter, the Complainant, on [...] August 2020, again requested access to all recordings of telephone conversations conducted with the Company's consultants regarding the agreement. The Company, by letter dated [...] September 2020, refused to fulfill the aforementioned request, justifying that it does not provide recordings of conversations due to data security. At the same time, the Company informed the Complainant about the subject matter of the conducted conversations on the dates: [...] October 2019 and [...] January 2020, including

what personal data was included: in one case before the conversation began, the Complainant introduced herself by providing her first and last name, then for verification purposes, she provided her NIP number; in other cases, only the company's NIP was provided (evidence: explanations of the Company from [...] March 2021 along with attachments – correspondence exchanged between the Company and the Complainant, pages 34-41 of the case file). The Company in its explanations from [...] March 2021 also indicated that the complaint is unfounded due to the fact that the conversation in question does not contain personal data. The only personal data in the form of the Tax Identification Number was a verification element provided by the Complainant to confirm with whom the conversation was actually to be conducted. For these reasons, and considering that the conversation also contains significant information whose disclosure adversely affects the rights of others (according to Article 15(4) of Regulation 2016/679), the Company refused the Complainant access to the recording and provided only information about the scope of the processed data (evidence: explanations of the Company from [...] March 2021).

In this factual context, the President of the UODO considered the following. Referring to the allegation regarding the Company's refusal to fulfill the Complainant's request for access to copies of her personal data – i.e., the request submitted based on Article 15(3) of Regulation 2016/679 – it should be noted that according to Article 15(3) sentence one of Regulation 2016/679, the administrator provides the person concerned with a copy of the personal data undergoing processing. Furthermore, according to paragraph 4 of the cited provision, the right to obtain a copy referred to in paragraph 3 must not adversely affect the rights and freedoms of others.

According to Article 12(3) of Regulation 2016/679, the administrator shall provide the person concerned with information about the actions taken in connection with the request based on Articles 15-22 without undue delay – and in any case within one month of receiving the request (sentence one). If the person concerned has submitted their request electronically, the information shall also be provided electronically where possible, unless the person concerned requests another form (sentence four). According to Article 12(5) sentence two letter b, if the requests of the person concerned are clearly unjustified or excessive, particularly due to their repetitive nature, the administrator may refuse to act on the request. The burden of proving that the request is clearly unjustified or excessive rests with the administrator (sentence three).

The obligation specified in Article 15(3) of Regulation 2016/679 can be fulfilled by the administrator either by preparing a copy or a transcript of the medium (document or recording) containing personal data and other data, or by providing the entitled person with the content of their personal data, excluding information contained in the medium that is not personal data within the meaning of Article 4(1) of Regulation 2016/679. Upon receiving a request for a copy of the processed personal data, the administrator shall decide how to fulfill this request each time. In the case of personal data recorded in a recording, this will involve a choice between providing a copy of the recording and providing a copy of the data contained in that recording. It should be emphasized that the administrator must

additionally meet the requirement of control over the scope of the personal data provided in the copy. As indicated in the doctrine (cit.): “Apart from the cases indicated in Article 12, a specific limitation on the exercise of the right to obtain a copy of data arises from paragraph 4 of the commented Article 15, according to which the provision of a copy of data must not adversely affect the rights and freedoms of others. This norm, which delineates the boundaries between the rights of the data subject and the rights and freedoms of others, cannot serve as a basis for depriving the person concerned of the opportunity to exercise their granted right to obtain a copy of their data. However, it requires the administrator, especially in the case of a request for the provision of a copy of data (recital 63), to control the scope of the information provided. Its purpose is to eliminate from the shared data set those pieces of information whose disclosure could violate the rights of other entities. Beyond the right to privacy or the right to personal data protection, when providing the entitled person with a copy of the data, the administrator should also take into account, among other things, trade secrets, intellectual property, or copyright protecting software (recital 63)” (J. Łuczak [in:] “GDPR. General Data Protection Regulation. Commentary”, ed. E. Bielak-Jomaa, D. Lubasz, Warsaw 2018, Article 15).

The evidence gathered in this case showed that the Complainant had repeatedly requested the Company to issue copies of the content of recordings of her telephone conversations with the Company's consultant (i.e., on the following dates: [...] March 2020, [...] May 2020, [...] July 2020, and [...] August 2020), including in a letter dated [...] August 2020, invoking Article 15 of Regulation 2016/679. In response, the Company sent the Complainant the text of her personal data processed by the Company, while simultaneously refusing to send the requested recordings of the telephone conversations with the Company's consultant due to data security (point 3 of the factual state). In its explanations, the Company claimed the complaint was unfounded, asserting that the conversation in question did not contain the Complainant's personal data.

In light of the above, it should be noted that the manner in which the Company fulfilled its informational obligation under Article 15(3) of Regulation 2016/679 did not take into account the circumstances that as a result of storing recordings of telephone conversations from [...] October 2019 and [...] January 2020, it processes data.

personal data, including the voice of the Complainant. The President of the UODO shares the position of the Provincial Administrative Court in Warsaw presented in the judgment of July 14, 2016 (case no. II SA/Wa 2080/15), concerning Article 33(1) of the Act of August 29, 1997 on the Protection of Personal Data (Journal of Laws of 2016, item 922), which during the validity of this act regulated the scope of information provided by the personal data administrator upon request of the person to whom the data pertained, as well as the deadline for fulfilling the aforementioned informational obligation. The Court ruled that – quote: “the personal data administrator, in response to a request from the person to whom the data pertains, referred to in Article 33(1) of the Act, should provide information in a simple, understandable manner, and not in a way that requires that person to guess the intentions of the data administrator or to make any additional interpretations or inferences from the response provided to them.” In the opinion of the President of the UODO, the above remains valid in the current legal state and applies when fulfilling the obligation under Article 15(3) of Regulation 2016/679, i.e., the form of providing a copy of the processed personal data should not raise doubts for the requesting person as to whether all their personal data has been included in that copy. Meanwhile, the Company, in fulfilling the above obligation, did not include among the personal data of the Complainant processed in connection with telephone conversations from [...] October 2019 and [...] January 2020, her voice.

The Company, both in the course of correspondence with the Complainant and in the content of its explanations, raised as a reason for refusal that the disclosure of the requested recordings would adversely affect the rights of other persons (in accordance with Article 15(4) of Regulation 2016/679). Article 15(4) of Regulation 2016/679 requires that the fulfillment of the request of the data subject be carried out with respect for the rights and freedoms of third parties. It is within the competence of the administrator to assess whether providing the personal data of the Complainant in the form of recordings of telephone conversations will not negatively affect the rights and freedoms of other

persons. However, the recognition that such an impact occurs cannot become a basis for depriving the data subject of the possibility of exercising their rights under Article 15(3) of Regulation 2016/679. The indicated provision, by setting the boundary between the rights of the requester and the rights of third parties, is intended to protect those third parties in cases where their personal data is contained in the sources from which a given person requests a copy – it cannot be treated as a limitation of the rights of the person requesting the exercise of rights arising from legal provisions. A statement that the provision of a copy of the data may cause a violation of the rights and freedoms of third parties results in the administrator's obligation to eliminate those pieces of information whose disclosure in connection with their transfer to the requester could violate the rights of third parties – in the case of a recording of a telephone conversation, for example, by anonymizing the voices of those persons recorded in the recording. Additionally, it should be emphasized that there are free solutions (programs) that allow for the removal (muting) of sound from audio recordings.

The assessment made by the President of the UODO in each case serves to examine the legitimacy of directing a mandate to a specific entity corresponding to the provisions of Article 58(2) of Regulation 2016/679 aimed at restoring compliance with the law in the data processing process – it is therefore justified and necessary only to the extent that the data processing process covered by the complaint exists. As evidenced by the evidence in this case, the manner of fulfilling the informational obligation under Article 15(3) of Regulation 2016/679 by the Company towards the Complainant did not include a copy of all her personal data processed by the Company. Therefore, there was a basis for the supervisory authority to exercise the powers referred to in Article 58(2)(c) of Regulation 2016/679 and to order the Company to fulfill the informational obligation under Article 15(3) of Regulation 2016/679 towards the Complainant by providing her with a copy of the personal data recorded in the recordings of telephone conversations with the consultant from [...] October 2019 and [...] January 2020, including the voice of the Complainant.

In this factual and legal state, the President of the Office for Personal Data Protection ruled as stated in the operative part.

Instruction: The decision is final. Based on Article 7(2) of the Act of May 10, 2018 on the Protection of Personal Data (Journal of Laws of 2019, item 1781, consolidated text) and in connection with Article 13 § 2, Article 53 § 1, and Article 54 of the Act of August 30, 2002 on Proceedings Before Administrative Courts (Journal of Laws of 2022, item 329, as amended), the party has the right to file a complaint against this decision to the Provincial Administrative Court in Warsaw, within 30 days from the date of delivery of this decision, through the President of the Office for Personal Data Protection (address: Office for Personal Data Protection, ul. Stawki 2, 00-193 Warsaw). The fee for the complaint is 200 zlotys. The party has the right to apply for legal aid, including exemption from court fees.

Print article

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